

SOFTWARE LICENSE AND DISTRIBUTION AGREEMENT

(GeoNap Mobile Application)

This Software License and Distribution Agreement (the “Agreement”) is entered into as of [EFFECTIVE DATE] (the “Effective Date”), by and between:

- Robert M. Bartis, an individual (“Developer” or “Licensor”), owner and developer of the mobile application known as GeoNap (the “App”); and
- [TRAVEL AGENCY LEGAL NAME], a [ENTITY TYPE, e.g., corporation/LLC] organized under the laws of [STATE], with a principal place of business at [TRAVEL AGENCY ADDRESS] (“Licensee”).

Developer and Licensee are each referred to individually as a “Party” and collectively as the “Parties.”

RECITALS

WHEREAS, Developer is the sole owner and author of the App, an application distributed through the Apple App Store;

WHEREAS, Developer wishes to make the App available to Licensee for distribution, at no charge, to a limited number of Licensee’s clients, in exchange for Licensee’s payment of certain costs associated with maintaining the App on the Apple App Store, as described herein; and

WHEREAS, the Parties intend that Developer shall retain sole and exclusive ownership of the App and all related intellectual property, and that this Agreement shall not be construed as a sale, assignment, or transfer of any ownership interest in the App;

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, the Parties agree as follows:

1. DEFINITIONS

- “App” means the mobile software application currently named “GeoNap,” including all current and future versions, updates, upgrades, source code, object code, documentation, and associated content, whether developed before or after the Effective Date.
- “End User(s)” means individual clients of Licensee who are granted access to or use of the App at no charge pursuant to this Agreement.
- “Free Client Allocation” means the maximum number of End Users Licensee may enroll to use the App at no charge during a given month, as set forth in Section 3.
- “Apple Developer Program Costs” means the annual Apple Developer Program enrollment fee and any other recurring or usage-based fees charged by Apple in connection with the publication and distribution of the App.

2. GRANT OF LICENSE

Subject to the terms of this Agreement, Developer grants to Licensee a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to distribute access to the App to End Users, solely for the purpose of providing the App as a complimentary service to Licensee's clients, and solely within the Free Client Allocation described in Section 3.

This license does not grant Licensee any right to modify, reverse engineer, decompile, resell, sublicense, white-label, or create derivative works of the App, or to distribute the App to any party other than End Users as expressly permitted herein, without Developer's prior written consent.

3. FREE CLIENT ALLOCATION

Licensee may enroll up to fifty (50) End Users per month to use the App at no charge (the "Free Client Allocation"). The Free Client Allocation renews each month during the Term and does not carry over unused capacity from one month to the next, unless otherwise agreed in writing by the Parties.

The Parties may adjust the Free Client Allocation by mutual written agreement (including email confirmation), which shall be deemed to amend this Section without requiring a full written amendment to the Agreement.

Developer reserves the right to require Licensee to verify or report the number of active End Users from time to time.

Licensee acknowledges that Developer's ability to issue application tokens, promo codes, or other mechanisms enabling free downloads under the Free Client Allocation depends on Apple Inc.'s services, developer agreements, and product offerings, which are outside Developer's control and may be modified, restricted, suspended, or discontinued by Apple at any time and without notice. Licensee shall indemnify, defend, and hold harmless Developer from and against any and all claims, losses, costs, or liabilities arising out of or relating to Apple's suspension, limitation, discontinuation, or modification of any service, program, policy, or agreement that prevents, delays, or restricts Developer's ability to issue such tokens or to otherwise fulfill the Free Client Allocation. Developer shall have no liability to Licensee, and this Agreement shall not be deemed breached by Developer, for any resulting inability to provide free access to End Users to the extent caused by such Apple-imposed restrictions.

4. OWNERSHIP AND INTELLECTUAL PROPERTY

Developer is and shall at all times remain the sole and exclusive owner of the App, including without limitation all source code, object code, algorithms, designs, user interfaces, trademarks, trade names, logos, documentation, and all other intellectual property rights therein or associated therewith (collectively, the "IP").

Nothing in this Agreement transfers, assigns, or conveys to Licensee any ownership interest, title, or right in or to the App or the IP, other than the limited license expressly granted in Section 2. Licensee shall not, and shall not permit any third party to, claim any ownership interest in the

App or the IP, file any trademark, patent, or copyright application with respect to the App, or represent itself as the owner or developer of the App.

All feedback, suggestions, or improvement requests provided by Licensee or End Users relating to the App shall be owned exclusively by Developer, and Licensee hereby assigns any rights it may have in such feedback to Developer.

5. NO EXCLUSIVITY — DEVELOPER’S RIGHT TO OTHER DISTRIBUTION

This Agreement is non-exclusive. Developer retains the unrestricted right, at Developer’s sole discretion, to license, distribute, market, sell, or otherwise make the App or any successor or similar application available to any other individual, business, or entity, whether for free or for a fee, on the same, better, or different terms than those offered to Licensee, without any obligation, consent, royalty, or accounting to Licensee.

6. PAYMENT OBLIGATIONS

In consideration of the license granted herein, Licensee shall pay Developer for the following costs incurred in connection with publishing and operating the App on the Apple App Store:

- The annual Apple Developer Program enrollment fee (currently \$99 USD per year, subject to change by Apple); and
- Other reasonable, documented costs directly attributable to the App’s operation and to Licensee’s End Users’ use of the App, which may include additional hosting, storage, third-party API, notification, or infrastructure costs incurred as a direct result of Licensee’s Free Client Allocation usage (collectively with the above, the “App Costs”).

Developer shall invoice Licensee for App Costs at reasonable intervals (at least annually for the Apple Developer Program fee), with reasonable supporting documentation. Licensee shall pay each invoice within thirty (30) days of receipt. Late payments may result in suspension of the license granted herein until payment is made current.

For the avoidance of doubt, Licensee’s payment of App Costs does not entitle Licensee to any ownership interest in the App, any exclusivity, or any right beyond the license expressly granted in Section 2.

7. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and continue for an initial term of six (6) months, automatically renewing for successive six (6) month terms unless either Party provides the other with written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

Either Party may terminate this Agreement for convenience upon thirty (30) days’ written notice, or immediately upon the other Party’s material breach that remains uncured for fifteen (15) days after written notice of such breach.

Upon termination or expiration, the license granted in Section 2 shall immediately terminate, Licensee shall cease all distribution of and access to the App to End Users, and any unpaid App Costs incurred prior to termination shall remain due and payable. Sections 4, 5, 8, 9, 10, 11, and 13 shall survive termination.

8. DISCLAIMER OF WARRANTIES

THE APP IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTY OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR THAT THE APP WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE. DEVELOPER MAKES NO REPRESENTATION OR WARRANTY REGARDING THE ACCURACY, RELIABILITY, OR AVAILABILITY OF THE APP.

9. LIMITATION OF LIABILITY AND INDEMNIFICATION

TO THE MAXIMUM EXTENT PERMITTED BY LAW, DEVELOPER SHALL NOT BE LIABLE TO LICENSEE, ANY END USER, OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, DATA, GOODWILL, OR BUSINESS, ARISING OUT OF OR RELATING TO THE APP, THIS AGREEMENT, OR THE USE OR INABILITY TO USE THE APP, REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF DEVELOPER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

DEVELOPER'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE APP SHALL NOT EXCEED THE TOTAL AMOUNT ACTUALLY PAID BY LICENSEE TO DEVELOPER UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

Licensee shall defend, indemnify, and hold harmless Developer, and Developer's successors and assigns, from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Licensee's or any End User's use or misuse of the App; (b) any breach of this Agreement by Licensee; (c) Licensee's distribution of the App to End Users; or (d) any claim brought by an End User or third party relating to the App as made available through Licensee.

Developer shall not be responsible or liable, in any form, for any use, misuse, or outcome resulting from Licensee's or any End User's use of the App.

10. NO PARTNERSHIP OR AGENCY

Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, franchise, or employment relationship between the Parties. Neither Party has the authority to bind the other or to incur obligations on the other's behalf.

11. COMPLIANCE WITH APPLE TERMS

Licensee acknowledges that use and distribution of the App remains subject to Apple Inc.'s App Store Review Guidelines, Developer Program License Agreement, and End User License Agreement, and that Developer's ability to provide the App may be affected by changes to Apple's policies outside Developer's control. Licensee shall ensure that its End Users comply with all applicable Apple terms of use.

12. CONFIDENTIALITY

Each Party agrees to keep confidential any non-public business, technical, or financial information disclosed by the other Party in connection with this Agreement, and to use such information solely to perform its obligations hereunder, except as required by law.

13. ASSIGNMENT

Licensee may not assign or transfer this Agreement, in whole or in part, without Developer's prior written consent. Developer may assign this Agreement, including the underlying App and IP, at its sole discretion, including in connection with a sale of the App or its associated business.

14. GOVERNING LAW; DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of [STATE], without regard to its conflict of laws principles. Any dispute arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in [STATE].

15. GENERAL PROVISIONS

- Entire Agreement. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior agreements or understandings, written or oral.
- Amendment. Except as provided in Section 3, this Agreement may be amended only by a written instrument signed by both Parties.
- Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- Notices. All notices under this Agreement shall be in writing and delivered by email or certified mail to the addresses set forth below (or such other address as a Party may designate).
- Waiver. No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver thereof.
- Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DEVELOPER / LICENSOR:

Name: Robert M. Bartis

Email: rmbartis@gmail.com

Signature: _____

Date: _____

LICENSEE:

Company: [TRAVEL AGENCY LEGAL NAME]

By: _____

Name: _____

Title: _____

Signature: _____

Date: _____